

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

EARL TATE,

Plaintiff,

-v-

**THE CITY OF NEW YORK, WILLIAM
MARI, YAREIMI OCASIO, HENRY
MUSAC, SHAKEEN ROBINSON, AND
JANE DOE 1-5 AND JOHN DOES 1 – 2,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Bronx County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
March 21, 2023

Rickner PLLC

By:

Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

WILLIAM MARI, YAREIMI OCASIO, HENRY MUSAC, SHAKEEN ROBINSON, AND
JANE DOE 1-5, AND JOHN DOES 1 – 2
1 Police Plaza
New York, New York 10007

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-v-

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VERIFIED COMPLAINT

Plaintiff Earl Tate, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx, because the Plaintiff's claims arose in the County of the Bronx.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff was at all times relevant to the action, a resident of Bronx County in the State of New York.

10. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

11. The Bronx DA's Office was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York to investigate and prosecute criminal conduct within Bronx County.

12. John and Jane Doe 1 – 5 are and were at all times relevant herein, officers, employees, and agents of the City of New York, acting under color of law and in their individual

capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. They are entitled to indemnification under New York General Municipal Law Section 50-k. They are being sued in their individual capacity.

13. Defendant P.O.s William Mari, Yareimi Ocasio, Henry Musac, Shakeen Robinson collectively, (“individual defendants”) were at all times relevant herein, officers, employees, and agents of the NYPD, acting under color of law and in their individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. They are entitled to indemnification under New York General Municipal Law Section 50-k. They are being sued in their individual capacity.

14. The Individual Defendants’ (defendants other than the City of New York) acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff’s rights.

15. At all relevant times, the Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

16. On April 2, 2019, at approximately 3:00 p.m., Mr. Tate was returning to his apartment located at 957 Kelly Street, Apt, 31 in the County of the Bronx in the State of New York.

17. An assailant pushed Mr. Tate into his apartment and attacked him.

18. Mr. Tate defended himself and that assailant retreated to their apartment next door.

19. On information and belief, the local 41st Precinct had received complaints of the assailant assaulting, robbing, burglarizing others in the building and surrounding area.

20. On information and belief, the officers at the local 41st Precinct, including the individual defendants, had information enough to not believe the assailant.

21. Officers from the 41st Precinct, including P.O.s William Mari, Yareimi Ocasio, Henry Musac, Shakeen Robinson, the individual defendants arrived and arrested Mr. Tate in his home without probable cause, or a search or arrest warrant.

22. Mr. Tate was the victim of a crime and not the perpetrator and the defendants knew or should have know this.

23. Bail in the amount of \$3,000 bond or \$2,500 cash was set. Mr. Tate could not afford bail and was in custody until his release.

24. On December 21, 2022, after more than three years the charges were dismissed.

25. On information and belief, defendants knew they did not have credible evidence upon which to prosecute Mr. Tate but initiated and maintained his prosecution despite this knowledge.

THE INJURIES TO PLAINTIFF

26. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

27. These damages include 3.5 years in hideous and unconstitutional conditions at Rikers Island.

28. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

29. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
ILLEGAL SEARCH UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

31. The Individual Defendants searched Plaintiff without probable cause to do so.

32. Even if there was probable cause, the manner in which the search was conducted was unreasonable.

33. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

34. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries

35. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. The Individual Defendants restrained and arrested Plaintiff without probable cause.

38. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

39. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

40. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

43. The grand jury indictment is a nullity because it was procured using false evidence and statements and by withholding exculpatory evidence and statements.

44. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

45. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

46. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court.

50. The Individual Defendants withheld exculpatory evidence from the prosecution, defense counsel, and court.

51. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution to be free from prosecution based on false statements and under *Brady v. Maryland*, 373 U.S. 83 (1963), and the Individual Defendants are therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

52. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**FIFTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

54. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

55. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

56. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

57. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

58. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

59. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SIXTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. The City of New York is liable for the horrific conditions on Rikers Island under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the Department of Correction, which is part of the City of New York.

62. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**SEVENTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

64. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by the Individual Defendants.

65. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

66. Plaintiff was conscious of the confinement and did not consent to such confinement.

67. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

68. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

69. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

72. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

73. Qualified immunity is no defense to this claim.

74. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

75. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**NINTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. The Individual Defendants initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

78. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

79. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

80. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

82. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

83. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

84. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

85. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**ELEVENTH CLAIM FOR RELIEF:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

87. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

88. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

89. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

90. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**TWELFTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

91. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

92. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;

- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

93. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, .

94. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, [as well as a deprivation of liberty].

95. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

96. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**THIRTEENTH CLAIM FOR RELIEF:
DEFAMATION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

97. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

98. The Individual Defendants knowingly released false information about Plaintiff to the news media, including false statements that Plaintiff had committed a crime.

99. The actions of the Individual Defendants damaged the reputation of plaintiff.

100. The actions the Individual Defendants were performed with malice and disregard for the truth.

101. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as *per se* damages.

102. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

103. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
March 21, 2023

Rickner PLLC

By:

Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
March 21, 2023

Rickner PLLC

By:

Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff